Fort Bend County District Court

Cause No. 2023-CV-0016

Jennifer Tyler, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-5-23
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those allegations specifically admitted herein, and demands strict proof thereof as required by the Texas Rules of Civil Procedure.

For its first affirmative defense, Defendant asserts that the injuries and damages claimed by Plaintiff were not proximately caused by any negligence on the part of Defendant. The collision occurred at a low rate of speed, and the forces involved were insufficient to produce the injuries alleged, or the alleged injuries pre-existed the occurrence or arose from unrelated causes.

For its second affirmative defense, Defendant asserts proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. To the extent the trier of fact finds Plaintiff was negligent, that negligence must be compared against any responsibility assigned to Defendant, and any recovery must be reduced or barred accordingly.

For its third affirmative defense, Defendant asserts that Plaintiff failed to mitigate damages by not following reasonable medical advice, delaying treatment, or incurring medical expenses that are unreasonable or unnecessary. Any recovery must be limited under Section 41.0105 of the Texas Civil Practice and Remedies Code to amounts actually paid or incurred.